

CITIZENSHIP AND RESPONSIBILITY IN NIGERIA: A LEGAL APPRAISAL

Introduction

Citizenship and responsibility are key parts of a nation's legal and constitutional foundation. Citizenship, legally, means a status given to individuals, recognising them as full members of a state. This status gives them rights and imposes duties under the law. Responsibility, related to citizenship, refers to the obligations, both civic and legal, that citizens owe to their country and to each other. In Nigeria, the relationship between citizenship and responsibility is rooted in the constitution but varies in interpretation. This literature review looks at five important Nigerian legal textbooks that discuss citizenship and responsibility. It aims to understand the legal foundations, academic viewpoints, and effects on national development. The review explores themes from each text, identifies gaps, compares the authors' views, and situates their relevance within Nigeria's legal framework and democratic growth.

Thematic Review of Selected Textbooks

1. Ese Malemi, *The Nigerian Constitutional Law* (2012)¹

Malemi provides a thorough constitutional analysis of citizenship in Chapter Six, basing it on Sections 25 to 32 of the 1999 Constitution (as amended)². He emphasizes the Constitution's authority and how it controls both gaining and losing citizenship. Additionally, Malemi connects legal status to civic duties. He asserts that responsibilities like loyalty, paying taxes, and political participation are not just moral duties; they are constitutional requirements³. His analytical style, while clear, focuses more on straight legal issues than on sociological or philosophical aspects of responsibility.

2. Nwabueze B.O., *Constitutional Democracy in Africa, Vol. 1* (2003)⁴

Professor Nwabueze takes a more philosophical and historical approach to citizenship. He argues that citizenship goes beyond legal definitions and should be viewed through the lens of democratic involvement and civic virtue. He critiques Nigeria's citizenship laws, expressing concern that they do not effectively promote national unity, especially with the ongoing "indigene-settler" divide among ethnic groups. Nwabueze sees responsibility as inherently political, stating that civic duties include fighting against unconstitutional governance and defending democratic institutions. His work adds a normative aspect that challenges formal legal views⁵.

¹ Ese Malemi, *The Nigerian Constitutional Law* (Princeton Publishing Co., Lagos, 2012), p. 186.

² *Constitution of the Federal Republic of Nigeria 1999 (as amended)*, ss. 25–32

³ Ese Malemi, *The Nigerian Constitutional Law* (Princeton Publishing Co., Lagos, 2012), p. 194

⁴ B.O. Nwabueze, *Constitutional Democracy in Africa, Vol. 1* (Spectrum Books Ltd., Ibadan, 2003) p. 244.

⁵ B.O. Nwabueze, *Constitutional Democracy in Africa, Vol. 1* (Spectrum Books Ltd., Ibadan, 2003), p. 248.

3. Ladan M.T., Introduction to Nigerian Citizenship Law and Human Rights (2006)⁶

Ladan's work is structured to enhance understanding of citizenship from both academic and practical angles. He closely examines the connection between citizenship and human rights, arguing that true citizenship must ensure access to civil liberties, regardless of ethnicity or gender. He valuably examines the link between rights and responsibilities, addressing the negative impact of civic disengagement and distrust in institutions on national development.⁷ His holistic approach, which combines legal concepts with human rights and development theory, enhances the book's relevance.

4. Okonkwo C.O., Constitutional Law in Nigeria (2000)⁸

Okonkwo's text, although brief on citizenship, provides a rich doctrinal view of the legal interpretations of Sections 25 to 32 of the 1999 Constitution⁹. He critiques the strict criteria for naturalization and the selective political rights given to registered citizens. He also explores judicial views on issues of dual citizenship and loss of nationality¹⁰. Regarding responsibility, Okonkwo highlights the challenges of enforcing civic duties. He argues that although the Constitution outlines responsibilities in Chapter II¹¹, their lack of enforceability under Section 6(6)(c) weakens the legal concept of responsibility¹². This doctrinal clarity is appealing, especially to constitutional law scholars.

5. Aguda A., The Judiciary in the Government of Nigeria (1983)¹³

Aguda's book focuses on the judiciary but also makes significant connections by discussing responsibility in relation to legal institutions. He claims that one of the greatest civic duties of a citizen is to uphold the rule of law by obeying legal authority and respecting court decisions. He also mentions citizens' responsibility to challenge illegal actions through the proper legal channels, suggesting that a well-informed public is essential for effective democracy. Although not primarily about citizenship, Aguda's take on legal responsibility is practical and institutionally focused.

Comparative Analysis

A comparison of the five texts reveals both common and differing viewpoints. Malemi and Okonkwo have more doctrinal and positivist interpretations, while Nwabueze and Ladan adopt broader, more humanistic perspectives. Malemi emphasizes constitutional duties, while Nwabueze criticizes their inadequacy in fostering social unity. Ladan uniquely ties citizenship to human rights and development, offering a more practical perspective. Although Aguda's

⁶ M.T. Ladan, *Introduction to Nigerian Citizenship Law and Human Rights* (ABU Press, Zaria, 2006), p. 72.

⁷ *Ibid.*, p. 83

⁸ C.O. Okonkwo, *Constitutional Law in Nigeria* (ABU Press, Zaria, 2000), p. 101

⁹ *Constitution of the Federal Republic of Nigeria 1999 (as amended)*, ss. 25–32

¹⁰ B.O. Nwabueze, *Constitutional Democracy in Africa, Vol. 1* (Spectrum Books Ltd., Ibadan, 2003), p. 108.

¹¹ *Constitution of the Federal Republic of Nigeria 1999 (as amended)*, chapter II

¹² *Constitution of the Federal Republic of Nigeria 1999 (as amended)*, s. 6(6)(c)

¹³ A. Aguda, *The Judiciary in the Government of Nigeria* (New Horn Press, Ibadan, 1983) p. 61.

contribution is less direct; it reinforces the idea of legal responsibility through institutional compliance. Together, these authors create a varied picture of citizenship as both a legal status and a sociopolitical idea.

Identified Gaps in Literature

One notable gap is the limited discussion of digital citizenship and civic responsibility in the context of social media and globalization. None of the authors significantly address the changing responsibilities of citizens in today's digital landscape. Another absence is the focus on environmental responsibility as a civic duty within constitutional frameworks¹⁴. These gaps are important in a country like Nigeria, where digital activism and environmental challenges overlap with governance and citizenship issues. Future research should consider these emerging civic aspects in the legal understanding of responsibility.

Relevance to Nigerian Legal Framework and Nation-building

The reviewed texts highlight how crucial citizenship is to Nigeria's constitutional democracy. By linking citizenship with civic responsibility, they stress the importance of participatory governance, legal compliance, and social accountability. Their collective insights enrich Nigeria's legal framework by emphasizing both rights and duties that can be enforced. Regarding nation-building, these perspectives provide valuable ideas for legal reform, civic education, and strengthening institutions.

Conclusion

This literature review lays a solid foundation for understanding citizenship and responsibility in Nigeria, viewed through diverse but complementary perspectives. The legal view of citizenship presented by Malemi and Okonkwo exists alongside the broader civic and moral ideas explored by Nwabueze, Ladan, and Aguda. Each author adds something unique to the discussion, affirming the connection between rights and responsibilities in supporting constitutional democracy. The gaps identified call for further research, especially concerning digital and environmental responsibilities. This review emphasizes the need for ongoing legal scholarship and policy engagement to refine the concept of Nigerian citizenship.

¹⁴ s 20, Constitution of the Federal Republic of Nigeria 1999 (as amended))